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Provision of September 28, 2023
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No. 420 of September 28, 2023

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

Prof. Ginevra Cerrina Feroni, Vice President,
Dr. Agostino Ghiglia, and Attorney Guido Scorza,
Members, and Cons. Fabio Mattei, Secretary General;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data, and repealing Directive 95/46/EC, "General Data Protection Regulation" (hereinafter, "Regulation");

HAVING REGARD TO Legislative Decree No. 196 of June 30, 2003, containing the "Code regarding the protection of personal data, containing provisions for the adaptation of the national legal system to Regulation (EU) 2016/679 of the European Parliament and of the Council of April 27, 2016, concerning the protection of natural persons with regard to the processing of personal data, as well as the free movement of such data and repealing Directive 95/46/EC" (hereinafter "Code");

HAVING REGARD TO Regulation No. 1/2019 concerning internal procedures with external relevance, aimed at carrying out the tasks and exercising the powers assigned to the Guarantor for the protection of personal data, approved by resolution No. 98 of April 4, 2019, published in G.U. No. 106 of May 8, 2019, and on www.gpdp.it, doc. web n. 9107633 (hereinafter "Guarantor Regulation No. 1/2019");

HAVING REGARD TO the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the Guarantor Regulation No. 1/2000 on the organization and functioning of the office of the Guarantor for the protection of personal data, doc. web n. 1098801;

REPORTING Dr. Agostino Ghiglia;

PREAMBLE

1. Introduction.

Following a specific report, also confirmed by the press release from XX of the USB-Unione Sindacati di Base, it emerged that numerous personal data, including health-related data, of the workers of Acciaierie d'Italia (formerly Ilva) in Taranto have been published on the institutional website of the Ministry of the Environment and Energy Security, formerly the Ministry of Ecological Transition (hereinafter "Ministry").

In particular, the provincial coordination of USB in Taranto reported that "following the inspection by Ispra and Arpa personnel at the factory in the first quarter of XX, the inspection team requested the records of the warehouse supplies. Documents that, sent by the plant manager, were then published on the Mite website, in the section related to the supervision and control activities of the AIA documentation."

According to what was reported by the Trade Unions, "in the public records [...], under the heading 'Infirmary-First Aid', there are also hundreds of names and surnames, along with their employee numbers, of employees who requested safety glasses, including prescription ones."

2. The investigative activity.

With note of XX, prot. n. XX the Ministry, in response to a request for information from the Guarantor (note prot. n. XX of XX), stated, in particular, that:

- "it falls within the institutional tasks of the General Directorate for Environmental Assessments (DG VA), competent in the matter of Environmental Impact Assessment (VIA), Strategic Environmental Assessment (VAS), Integrated Environmental Authorization (AIA), the publication of numerous documents. In particular, based on Legislative Decree No. 152/2006, Part II, [...the aforementioned

Directorate] is required to publish on the website of the Ministry of Ecological Transition (and specifically in the dedicated portal 'Environmental Assessments and Authorizations VIA - VAS - AIA'), among other things, the requests and the related documentation submitted by the proponents for the initiation of the proceedings in question - related to civil works and industrial plants of significant impact (VIA), plans and programs that have significant effects on the environment (VAS), large industrial plants (AIA) - the opinions and acts acquired within the same proceedings, public observations, final provisions, and the results of the monitoring carried out";

- "the publication of such documents responds to the need to improve the quality of decisions and to strengthen their preventive protective effectiveness for the environment, also contributing to raising public awareness regarding environmental issues, thus recognizing and guaranteeing the public the possibility to send their observations to this Directorate, which are taken into account within the mentioned proceedings. Through the publication of the documentation, the transparency of administrative action and public involvement is thus guaranteed";

- "with reference to the integrated environmental authorizations under the competence of [the Ministry], including that of the steel plant in Taranto, the Higher Institute for Environmental Research (ISPRA) is the control authority that, pursuant to Article 29-decies, paragraph 3, of Legislative Decree No. 152/2006, verifies (i) compliance with the conditions of the integrated environmental authorization; (ii) the regularity of the controls on the operator, with particular reference to the regularity of the measures and devices for preventing pollution as well as compliance with emission limit values; (iii) that the operator has complied with its communication obligations and in particular that it has regularly informed the competent authority and, in the event of inconveniences or incidents that significantly affect the environment, promptly reported the results of the emissions monitoring of its plant";

- "among the other obligations of the competent authority [the Ministry], pursuant to Article 29-decies, paragraph 5, of Legislative Decree No. 152/2006, is the publication of the reports prepared by ISPRA following each visit to the installation, containing "the relevant findings regarding the compliance of the installation with the authorization conditions and the conclusions regarding any actions to be taken," with inspections specifically related to the steelworks in Taranto being conducted quarterly rather than annually as provided for other installations";

- "the results of the quarterly checks (ordinary visits) carried out by ISPRA as well as the results of the self-checks submitted by the Operator, also on a quarterly basis (Quarterly Report of the Operator), are made promptly available on the VAS-VIA-AIA portal of this Ministry in the section dedicated to the former ILVA of Taranto (Supervision and Control Activities)";

- "furthermore, pursuant to paragraph 6 of Article 29-decies, Legislative Decree No. 152/2006, ISPRA communicates to the competent authority and the operator the results of the checks and inspections "indicating the situations of non-compliance with the prescriptions referred to in paragraph 3, letters a), b) and c), and proposing the measures to be adopted";

- "ISPRA transmitted the results of the ordinary inspection visit carried out at the Acciaierie d'Italia steelworks in Taranto in the month of XX (1st quarter), proposing to issue a warning to the Operator and attaching [...] a copy of the inspection reports and the additional documentation acquired from the Operator";

- "following ISPRA's proposal of XX and after carrying out the necessary checks, the Division of Significant Risk and Integrated Environmental Authorization (Division of the DG VA competent in AIA matters) proceeded, pursuant to Article 29-decies, paragraph 9, of Legislative Decree No. 152/2006, to issue a warning to the Operator [...] and to publish on XX, on the dedicated VAS-VIA-AIA portal of the Ministry, said warning [...] and the attached ISPRA note prot. XX of XX";

- "in particular, Annex 16 to XX of XX [...] is in turn a zip file containing two pdf files, of which the file "List C5" contains the list of critical elements and their assigned codes as provided by the environmental management system procedure "Purchases of goods and services for the protection of health, safety, and the environment";

- "the document subject to the report consists of a list of safety devices associated with some personal data (first name and/or surname) of employees, mostly incomplete";

- “these are protective devices that all those who access the plant must wear. They are included in the list of personal protective equipment provided to all workers under Legislative Decree 81/08 and have protective characteristics compliant with the relevant technical standards and, upon specific request, are provided with prescription glasses. Therefore, they are not glasses intended for individuals with vision defects, but rather protective devices that must be worn regardless of one’s health status and that are provided with prescriptions to those who expressly request them”;
- “in particular, the document in question consists of a list of names, surnames, and employee numbers, many of which are not fully indicated and therefore not directly attributable to the individual”;
- “specifically, the list consists of n. 571 non-prescription glasses for which the full name and surname are indicated and n. 165 prescription glasses of which: n. 45 are associated with full surnames without the first name, n. 9 are associated only with truncated surnames, and n. 111 are not intelligible”;
- on XX, the undersigned learned from press sources, particularly from the press release of XX from the USB-Unione Sindacati di Base, that data of employees from the Taranto plant had been published on the aforementioned VAS-VIA-AIA portal - in the section related to the supervision and control of AIA documentation - attached to the ISPRA note regarding the ascertainment of violations and the proposal for a warning pursuant to Article 29-decies, paragraph 3, of Legislative Decree No. 152/2006 [...]”;
- on the same day [...] this Directorate General immediately took action to remove the documentation from the VAS-VIA-AIA portal of the Ministry”;
- “as a result, the documents remained potentially visible on the VAS-VIA-AIA site for a period of 16 days, from XX to XX, with the explained numerical findings (four downloads)”;
- “in addition to the immediate removal of the documentation in question, this Directorate has taken action by implementing every appropriate measure to prevent similar incidents from occurring in the future. It promptly involved the appointed DPO [...] with whom some corrective measures were planned, primarily training aimed at employees who dealt with the publication of the documents subject to the report and all those involved in the publication of data on the web, during which the incident was discussed and the Ministry’s transparency policies were reviewed.”

With note of XXX, prot. n. XX, the Office, based on the elements acquired, the checks carried out, and the facts emerged following the investigative activity, notified the Ministry, pursuant to Article 166, paragraph 5, of the Code, of the initiation of the procedure for the adoption of the measures referred to in Article 58, paragraph 2, of the Regulation, concerning the alleged violations of Articles 5, paragraph 1, letters a) and c), 6, and 9 of the Regulation and Articles 2-ter, 2-sexies, and 2-septies, paragraph 8, of the Code, inviting the aforementioned holder to submit defensive writings or documents to the Authority or to request to be heard by the Authority (Article 166, paragraphs 6 and 7, of the Code, as well as Article 18, paragraph 1, of Law No. 689 of November 24, 1981).

In a note dated XX, protocol no. XX, the Ministry submitted a defensive memorandum, in which the main arguments already highlighted in the previous note dated XX, protocol no. XX, were largely reiterated.

In particular, the Ministry stated that:

“it should be noted that, in general, in matters of AIA, pursuant to Article 29-decies, paragraph 8, of Legislative Decree No. 152/2006, the results of emission control, required by the conditions of the AIA and held by the competent authority, must be made available to the public, ‘in compliance with the provisions of Legislative Decree No. 195 of August 19, 2005’;

“among the other obligations that the competent authority is required to fulfill, pursuant to Article 29-decies, paragraph 5, of Legislative Decree No. 152/2006, is the publication of the reports prepared by ISPRA following each visit conducted at the installation, containing ‘the relevant findings regarding the compliance of the installation with the authorization conditions and the conclusions regarding any actions to be taken,’ inspection visits that, specifically regarding the Taranto steel plant, are conducted quarterly and not annually as provided for other installations. It should be noted that, for the Taranto steel plant (declared of national strategic interest), the AIA consists of a complex regulatory framework that, in addition to providing numerous obligations for the environmental adaptation of the plant, has

introduced a verification system by the Control Authority (ISPRA) and by the Operator (self-checks) that is much more stringent than that provided for other installations subject to AIA. [...]”;

- “following ISPRA's proposal of XX and after the necessary verifications, the Division of Relevant Risk and Integrated Environmental Authorization (Division of the General Directorate for Environmental Evaluations (DG VA) competent in AIA matters) proceeded, pursuant to Article 29-decies, paragraph 9, of Legislative Decree No. 152/2006, to warn the Operator with note XX of XX and to [...] publish on XX, on the dedicated VAS-VIA-AIA portal of the Ministry, said warning (indicating it as ‘Warning of XX Vapor condensation system operation’) and the attached ISPRA note protocol no. XX of XX2 (zip file indicated as ‘Attachments to the warning of XX’) at the following link: [https://va.mite.gov.it/it/IT/Oggetti/Documentazione/2038/4338?](https://va.mite.gov.it/it/IT/Oggetti/Documentazione/2038/4338?Testo=&RaggruppamentoID;=2011#formcercaDocumentazione)

Testo=&RaggruppamentoID;=2011#formcercaDocumentazione”;

- “among the substantial amount of documents that the Operator transmitted to ISPRA, the aforementioned file ‘List C5’ was included, which contains the list of critical elements and their assigned codes as required by the procedure of the environmental management system ‘Purchases of goods and services for the protection of health, safety, and the environment.’ In particular, this list also contains personal protective equipment (safety glasses) associated with some names of employees of the plant. The same documentation, crucial for ISPRA for the ascertainment of a specific violation of the AIA, was transmitted by ISPRA to this Ministry for the purpose of publishing the outcome of the inspection visit on the VAS-VIA AIA portal”;

- “on XX, the undersigned learned from press sources, particularly from the press release of XX from the USB-Unione Sindacati di Base (provincial coordination of Taranto), that data of employees from the Taranto plant had been published on the aforementioned VAS-VIA-AIA portal - in the section related to the monitoring and control activities of the AIA of the steel plant - attached to the ISPRA note regarding the ascertainment of violation and proposal for warning pursuant to Article 29-decies, paragraph 6, of Legislative Decree No. 152/2006 (ref. ISPRA note protocol no. XX of XX, acquired on the same date with protocol no. XX, cited). On the same day (XX), this General Directorate immediately took action to remove said data from the VAS-VIA-AIA portal of the Ministry. Therefore, regarding the duration of the violation, it is highlighted that the documents remained potentially accessible on the VAS-VIA-AIA portal for a period of 16 days, from XX to XX [...]. It is emphasized that the data potentially accessible to the public were not located on the homepage of this Ministry's website, but rather in the specific section.

dedicated to the activities of supervision and control of the AIA of the steel industry”;

- “the document subject to the report consists of a list of safety devices associated with some personal data (first name and/or surname) of employees, many of which are incomplete. These are protective devices that all those who access the facility must wear. They fall within the list of personal protective equipment provided to all workers under Legislative Decree 81/08 and have protective characteristics in accordance with the relevant technical standards and, upon specific request, are provided with prescription lenses according to medical prescriptions. Therefore, these are not glasses intended for individuals with vision defects, but rather protective devices that must be worn regardless of one's health status and are provided with prescription lenses to those who expressly request them. In particular, the document in question consists of a list of names, surnames, and employee numbers, many of which are not fully indicated and therefore not directly attributable to the individual. Specifically, the list consists of n. 571 non-prescription glasses for which the full name and surname are indicated and n. 165 prescription glasses of which: n. 45 are associated with full surnames without the first name, n. 9 are associated only with truncated surnames, and n. 111 are not intelligible.” [...] Considering that in this case the number of employees of Acciaierie d'Italia amounts to over 10,000 units, it is reasonable to consider an individual identifiable only when the full name and surname are indicated, barring homonyms”;

- “on this point, the Garante has deemed that “given the definition of personal data (‘any information relating to an identified or identifiable natural person’, considering that ‘an identifiable natural person is one who can be identified, directly or indirectly, by reference to an identifier such as a name, an identification number, [...]’, art. 4, par. 1, n. 1 of the Regulation), the indication of even just the employee number or an incomplete name may not be considered in practice sufficient to avoid the

identifiability of the data subjects, especially when other contextual information or further identifying elements are associated with them (cf., most recently, provision n. 420 of December 15, 2022, doc. web 9853429)”;

- “the element that should lead to the conclusion that the names not indicated in full (165 prescription glasses of which: n. 45 are associated with full surnames without the first name, n. 9 are associated only with truncated surnames, and n. 111 are not intelligible) cannot be traced back to identifiable persons is the circumstance that there are no ‘associated other contextual information or further identifying elements’. The context in which the event occurred does not allow for certainty in identifying the names of the individuals who requested the prescription glasses due to the vastness of the personnel employed at the ILVA facility in Taranto, estimated at over 10,000 employees. In other words, a list of data lacking the name of the requester or with surnames not indicated in full or not intelligible, when compared to such a large employee population, does not allow for the identification of a specific individual (or at least to exclude potential homonyms), as the contextual information is clearly insufficient and there are no additional identifying elements”;

- “it must be concluded that the provision of the Garante (n. 420 of December 15, 2022) may be considered not pertinent insofar as it refers to the violation of the Regulation established in the different case of the Offices of a small Municipality, which disseminated data relating to the pathology of an employee (among the few dozen presumably employed there) and which, moreover, as stated in the text of the provision, ‘following a long absence from service at this Municipality’ (an element sufficient in itself, in abstract, to identify the employee) ‘resigned, without returning to service at this Municipality, her voluntary resignation from service, including in the act determining the acknowledgment of the resignation from service “in order not to aggravate her health condition, also due to the pharmacological therapy followed.” For the same reason, the requester asked the Administration to waive the required notice period”;

- “this Directorate, having conducted the necessary investigations with the competent Offices, has been able to ascertain that the documentation published on its dedicated VAS-VIA-AIA portal (not on the ‘main’ site www.mite.gov.it of the Ministry), within which the document in .pdf containing the list of safety glasses described above was present, was downloaded by a total of four users. In this regard, it is highlighted that the undersigned, in order to know the number of visitors who consulted the document in question, with note prot. XX of XX, consulted the Directorate General for Technological Innovation and Communication (ITC Directorate) of this Ministry. Following this request, the ITC Directorate, having conducted the necessary checks, with note prot. XX of XX communicated that the number of downloads of the .zip file containing the file subject to the report is equal to n. 4, of which 3 downloads correspond to the IP address of this Ministry while only 1 corresponds to an external IP address, and therefore, there was only one access from outside to the document in question”;

- “in light of what has been noted, it is emphasized that, if a violation of the Regulation were found in the conduct of the undersigned, it would be a violation of minor significance, considering that:

– in the opinion of the undersigned, no identifiable personal data related to the health of workers has been disseminated;

– the period of publication of the document in question is only 16 days, thanks to the immediate removal of the document from the VAS-VIA-AIA portal;

– the number of downloads of the aforementioned document is 4, of which 3 downloads correspond to the IP address of this Ministry while only 1 corresponds to an external IP address;

- “to demonstrate that any violation of the Regulation would be considered minor, it is noted that it has not been reported to this Authority by the interested parties, employees of Acciaierie d’Italia”;

- “it should be noted that the indication ‘prescription glasses’ as personal protective equipment is data related to a general variation in the visual capacity of anyone who wears glasses (information accessible to all). Specifically, the information made accessible did not report the degree of prescription and therefore did not represent particular data; consequently, for this reason as well, the employees in question were not identifiable”;

- “it was, therefore, clearly a chain of events that involved the Manager and ISPRA, who failed to perform the usual control that they were required to carry out before transmitting the documentation. It

is absolutely evident, in fact, that in transmitting the list in question, the Manager should have anonymized the document before transmission to ISPRA. The Institute should have done the same”;

- “this General Directorate, also following the report received, considering that among the attachments sent by ISPRA to the note regarding the ascertainment of violation and proposed warning there were irrelevant data, with note prot. XX of XX, [...] took care to report what happened to ISPRA highlighting how it falls within the duties of the ‘Institute, as the Supervisory Authority, to preliminarily verify the relevance of the data acquired with the subject of the inspections and to indicate, in the transmission of inspection reports, pursuant to Article 29 decies, paragraph 5, Legislative Decree No. 152/2006, the data contained or attached in the same reports that should not be published, as provided for by Legislative Decree No. 195/2005”;
- “in addition to the immediate removal of the documentation in question (following the aforementioned press release of XX from the USB-Unione Sindacati di Base), this Directorate has taken action by implementing every appropriate measure to prevent similar incidents from occurring in the future. As already noted, this General Directorate has taken care to describe what happened to ISPRA highlighting how it falls within the duties of the ‘Institute, as the Supervisory Authority, to preliminarily verify the relevance of the data acquired with the subject of the inspections and to indicate, in the transmission of inspection reports, pursuant to Article 29 decies, paragraph 5, Legislative Decree No. 152/2006, the data contained or attached in the same reports that should not be published, as provided for by Legislative Decree No. 195/2005”. Furthermore, the undersigned promptly involved the DPO [...] with whom some corrective measures were planned, primarily training aimed at employees who dealt with the publication of the documents in question and all those who handle the publication of data on the web, in which the incident was discussed and the Ministry's transparency policies were reviewed.”

The Ministry did not request to be heard by the Authority pursuant to Article 166, paragraph 6, of the Code.

3. Outcome of the investigative activity.

3.1 The regulatory framework

The regulation on the protection of personal data provides that the processing of personal data by public entities can only be carried out if necessary “to comply with a legal obligation to which the data controller is subject” or “for the performance of a task carried out in the public interest or related to the exercise of public powers vested in the data controller” (Article 6, paragraph 1, letters c) and e) of the Regulation). Such processing must, in any case, be based on Union or Member State law, which must pursue a public interest objective and be proportionate to the pursuit of the same. The purpose of the processing must be necessary for the execution of a task carried out in the public interest or related to the exercise of public powers vested in the data controller (cf. Article 6, paragraph 3, of the Regulation and Article 2-ter of the Code).

Regarding the special categories of personal data, including those related to health (for which a general prohibition on processing is provided, except in cases indicated in Article 9, paragraph 2 of the Regulation and, in any case, a regime of greater guarantee compared to other types of data, particularly as a result of Article 9, paragraph 4, as well as Article 2-septies of the Code), processing is permitted where “necessary for reasons of substantial public interest based on Union or Member State law, which must be proportionate to the pursued purpose, respect the essence of the right to data protection, and provide for appropriate and specific measures to safeguard the fundamental rights and interests of the data subject” (Article 9, paragraph 2, letter g), of the Regulation). The national legislator has defined “relevant” the public interest for processing “carried out by subjects performing tasks of public interest or related to the exercise of public powers” in the indicated matters, albeit in non exhaustive, from Article 2-sexies of the Code, establishing that the related treatments “are permitted when provided for by European Union law or, in the domestic legal system, by legal provisions or, in cases provided for by law, by regulations that specify the types of data that may be processed, the operations that can be carried out, and the relevant public interest reason, as well as the appropriate and specific measures to protect the fundamental rights and interests of the data

subject."

In any case, data related to health, that is, those "related to the physical or mental health of an individual, including the provision of health care services, which reveal information related to their health status" (Article 4, paragraph 1, no. 15 of the Regulation), due to the greater guarantees recognized by the Regulation and the Code, given the particular sensitivity of this category of data, "may not be disseminated" (Article 2-septies, paragraph 8, of the Code).

The data controller is, in any case, required to comply with the general principles regarding the protection of personal data (Article 5 of the Regulation).

3.2 The online dissemination of personal data of employees of the former ILVA plant in Taranto.

As evidenced by the documents, as well as by the findings made based on the elements acquired, following the investigative activity and subsequent evaluations of the Office, it has been established that the Ministry published, "for a period of 16 days, from XX to XX," on its institutional website, in the portal "Environmental Assessments and Authorizations VIA - VAS - AIA," personal data of the workers of the former ILVA plant in Taranto, including health-related data.

According to sector regulations, "with reference to the integrated environmental authorizations under the jurisdiction of [the Ministry], including that of the Taranto steel plant, the Higher Institute for Environmental Research (ISPRA) is the control authority," pursuant to Article 29-decies, paragraph 3 of Legislative Decree 152 of 2006.

This regulation prescribes that "the results of the quarterly controls (ordinary visits) carried out by ISPRA as well as the results of the self-checks transmitted by the Operator, also on a quarterly basis (Quarterly Report of the Operator), must be made promptly available" on the aforementioned portal "Environmental Assessments and Authorizations VIA - VAS - AIA" in the section dedicated to the former ILVA of Taranto, by the Directorate General for Environmental Assessments (DG VA) of the Ministry, competent in the matter of Environmental Impact Assessment (VIA), Strategic Environmental Assessment (VAS), Integrated Environmental Authorization (AIA).

In particular, the regulations that establish the publication of such documentation stipulate that public consultation of the documentation "is guaranteed also through publication on the website of the competent authority" (Article 29-quater, paragraph 2 of the aforementioned decree) and that "the results of the emission control, required by the conditions of the integrated environmental authorization and in the possession of the competent authority, must be made available to the public" (Article 29-decies, paragraph 8). Furthermore, "among the other obligations that the competent authority is required to fulfill, pursuant to Article 29-decies, paragraph 5, Legislative Decree No. 152/2006, is the publication of the reports prepared by ISPRA following each visit conducted at the installation."

The publication of such documents, as expressly indicated by the Ministry (cf. note of XX, in the records) "responds to the need to improve the quality of decisions and to strengthen their effectiveness in the preventive protection of the environment, also contributing to raising public awareness regarding environmental issues, thereby recognizing and guaranteeing it the possibility to send [to the Directorate General for Environmental Assessments (DG VA)] its observations."

The regulations, in any case, do not authorize the publication of personal data, but exclusively provide for a specific regime of transparency regarding the results of the checks carried out with the aim of informing the community about the oversight exercised in favor of the healthiness of the environment by the competent institutions.

As also expressly clarified by the Ministry during the investigation (cf. defensive memorandum of XX) "among the other obligations that the competent authority is required to fulfill, pursuant to Article 29-decies, paragraph 5, Legislative Decree No. 152/2006, is the publication of the reports prepared by ISPRA following each visit conducted at the installation and containing 'the relevant findings regarding the compliance of the installation with the authorization conditions and the conclusions regarding any actions to be taken,' without, however, such sector regulations providing any publicity regime regarding

the personal data of the interested parties operating at the facilities subject to checks."

In this specific case, from what emerges from the attached documentation and from what was stated by the Ministry, "among the substantial amount of documents that the Operator transmitted to ISPRA, which in turn sent [to the Ministry] competent for publication," a file named "List C5" was included which - in addition to the list "of critical elements and their assigned codes provided for by the environmental management system procedure 'Purchases of goods and services for the protection of health, safety, and the environment' - also contained the list 'of personal protective equipment (safety glasses) associated with some names of employees of the plant.'"

From the documentation on file, it emerges that in the attached so-called "List C5" under the heading "Infirmary-Emergency Room," numerous names of employees were listed, some also associated with their employee numbers, who were required, based on their duties, to wear personal protective equipment (safety glasses); moreover, next to certain names, there was also an indication to wear "prescription" glasses as personal protective equipment, confirming, at least for these workers, the presence of health conditions related to a reduction in visual capacity (see notes from XX and XX where it states that "the list consists of n. 571 non-prescription glasses for which the full name is indicated and n. 165 prescription glasses of which: n. 45 are associated with full surnames without the first name, n. 9 are associated only with truncated surnames, and n. 111 are not intelligible").

Although the Ministry declared that the aforementioned file, which was included in the documentation to be published, contained "names, surnames, and employee numbers, many of which are not fully indicated," it is highlighted that - given the definition of personal data ("any information relating to an identified or identifiable natural person," considering "identifiable the natural person who can be identified, directly or indirectly, with particular reference to an identifier such as a name, an identification number, [...]", art. 4, par. 1, n. 1 of the Regulation) - the indication of even just the employee number or an incomplete name may not be deemed sufficient in practice to avoid, in itself, the identification, even indirect, of the data subjects. This is independent of the presence of other contextual elements, also related to the size of the relevant organizational reality, as well as further personal information that could make such identifiability easier in practice.

In this regard, in the specific case, the file named "List C5" contained numerous names of workers indicated in full (first name and surname) to which the employee number was also associated, which is why what was stated by the Ministry regarding the circumstance that there were "no other contextual information or further identifying elements associated with the employee number" does not appear relevant.

More generally, reiterating that the personal data protection system requires a suitable legal basis for any processing operation (art. 4, point 2 of the Regulation), including dissemination (art. 2-ter, paragraph 4, letter b) of the Code), it is noted that the Authority has long provided guidance on the prerequisites (and the occurrence of these, the specific modalities) for the lawful publication, including online, of acts and documents containing personal data (see provision of May 15, 2014, n. 243 "Guidelines on the processing of personal data, including in acts and administrative documents, carried out for the purposes of publicity and transparency on the web by public entities and other obligated entities" web doc. n. 3134436, as well as, among the many decisions on the matter, see provision n. 28 of January 26, 2023, web doc 9865528, as well as the aforementioned provision of the Authority n. 420 of December 15, 2022, web doc 9853429). In this case, as mentioned, the employee number was directly associated with the name and surname of the workers, and the size of the working context of the data subjects cannot be considered relevant for the purposes of excluding the Ministry's liability, nor has any specific and suitable legal basis been identified that legitimizes the publication of the aforementioned personal data.

In this regard, it should be noted, in any case, that the Authority has clarified on several occasions that even the possible presence of a specific publicity regime (a circumstance that does not occur in this case) cannot entail any automaticity regarding the online dissemination of personal data and information, nor a derogation from the principles regarding personal data protection (see cited Guidelines). This is also confirmed by the personal data protection system contained in the Regulation,

under which it is provided that the data controller must implement “appropriate technical and organizational measures to ensure that, by default, only personal data necessary for each specific purpose of the processing are processed” and must be “able to demonstrate” – in light of the principle of “accountability” – that they have done so (arts. 5, par. 2; 24 and 25, par. 2, Regulation).

In this context, upon receiving the extensive documentation from Ispra in the month of XX and before proceeding with its publication, the Ministry should have been aware of the presence of personal data relating to numerous workers and, consequently, should have verified, based on a responsible and careful assessment, the existence of a legal or regulatory provision that legitimized such publication, as well as which information to publish, taking into account the limits set by the principles of lawfulness and minimization (see art. 5, par. 1, letters a) and c) of the Regulation).

Considering, furthermore, that the list subject to publication also indicated the requirement for dozens of workers (about 45) to wear “prescription glasses,” it must be deemed that the dissemination also concerned data related to health, that is, data “related to the physical or mental health of a natural person, including the provision of health care services, revealing information about their health status” (art. 4, par. 1, n. 15, of the Regulation; see also rec. 35 of the same).

This category of data also includes mere reference to “any information from which one can infer, even indirectly, the state of illness or the existence of pathologies of the subjects concerned” (see cited Guidelines) as, in the specific case, the indication for some of the workers listed to wear prescription glasses. Although the Ministry, during the investigation, stated that “the information made accessible did not report the degree of correction,” prescription lenses are, in any case, a medical device intended to correct or compensate for a defect in visual capacity, regardless of the specific degree. Therefore, this data must be processed in compliance with the stricter regime applicable to health-related data which, as mentioned, cannot be disseminated (art. 2-septies, paragraph 8 of the Code). This principle has been reiterated in numerous decisions by the Guarantor concerning individual cases (see among many, provision no. 68 of February 25, 2021, web doc 9567429; no. 255 of June 24, 2021, web doc no. 9688099; no. 404 of December 1, 2022, web doc 9842783; no. 405 of December 1, 2022, web doc 9844727; no. 420 of December 15, 2022, web doc 9853429; no. 3 of January 11, 2023, web doc no. 9857610). Although, according to what was confirmed by the Ministry, the episode that led to the present investigation was the result of “a chain of events that involved the Manager and ISPRA, who omitted the normally performed control that they were called to carry out before transmitting the documentation” intended to be published on the Ministry's website, and although the Ministry, upon learning of the news from press sources, immediately took action to ensure the definitive removal from the website of the aforementioned personal data included in the cited documentation, it must nevertheless be concluded, for the reasons stated above, that the personal data of numerous workers of Acciaierie d'Italia (formerly Ilva) in Taranto (approximately 570) - also associated with the employee number and for some of them (approximately 45) also with health-related data - were published for 16 days on the institutional website of the Ministry without a legal basis and in violation of the general prohibition on disseminating health-related data, in a manner not compliant with articles 5 paragraph 1, letter a) and c), 6 paragraph 1 letter c) and e) and 9 of the Regulation and articles 2-ter, 2-sexies and 2-septies, paragraph 8, of the Code. Nonetheless, the initiatives taken by the Ministry, also involving the Data Protection Officer, aimed at implementing “any appropriate action to prevent similar incidents from occurring in the future” are acknowledged positively, including bringing to the attention of ISPRA, which, as the supervisory authority, could have preliminarily verified the relevance of the data acquired concerning the inspections.

4. Conclusions. In light of the evaluations mentioned above, it is noted that the statements made by the data controller during the investigation - for the veracity of which one may be called to respond under art. 168 of the Code - although deserving of consideration, do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are insufficient to allow for the archiving of the present procedure, as none of the cases provided for by art. 11 of the Guarantor Regulation no. 1/2019 apply. Therefore, the preliminary evaluations of the Office are confirmed, and

the illegality of the processing of personal data carried out by the Ministry is noted, given that the personal data of numerous workers of Acciaierie d'Italia (formerly Ilva) in Taranto (approximately 570) - also associated with the employee number and for some of them also with health-related data (approximately 45) - were published for 16 days on the institutional website of the Ministry without a legal basis and in violation of the general prohibition on disseminating health-related data, in a manner not compliant with articles 5 paragraph 1, letter a) and c), 6 paragraph 1 letter c) and e) and 9 of the Regulation and articles 2-ter, 2-sexies and 2-septies, paragraph 8, of the Code. The violation of the aforementioned provisions makes applicable the administrative sanction provided for by art. 83, paragraph 5, of the Regulation, pursuant to articles 58, paragraph 2, letter i), and 83, paragraph 3, of the same Regulation, as also recalled by art. 166, paragraph 2, of the Code. In this context, considering, in any case, that the conduct has exhausted its effects, given that the aforementioned data has been removed from the institutional website of the Ministry, the conditions for the adoption of further corrective measures under art. 58, paragraph 2, of the Regulation do not exist.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions (articles 58, paragraph 2, letter i) and 83 of the Regulation; art. 166, paragraph 7, of the Code). The Guarantor, pursuant to articles 58, paragraph 2, letter i) and 83 of the Regulation as well as art. 166 of the Code, has the power to "impose an administrative pecuniary sanction pursuant to article 83, in addition to the [other] corrective measures [provided for in this paragraph], or in lieu of such measures, depending on the circumstances of each individual case" and, in this context, "the College [of the Guarantor] adopts the injunction order, which also provides for the application of the accessory administrative sanction of its publication, in whole or in part, on the Guarantor's website pursuant to article 166, paragraph 7, of the Code" (art. 16, paragraph 1, of the Guarantor Regulation no. 1/2019).

Regarding this matter, taking into account Article 83, paragraph 3, of the Regulation, in this specific case, the violation of the aforementioned provisions is subject to the application of the administrative pecuniary sanction provided for by Article 83, paragraph 5, of the Regulation.

The aforementioned administrative pecuniary sanction imposed, depending on the circumstances of each individual case, must be determined in amount while duly considering the elements provided for by Article 83, paragraph 2, of the Regulation.

In relation to the aforementioned elements, the particular sensitivity of the personal data subject to online dissemination has been considered, including data related to the health of numerous vulnerable individuals, workers of Acciaierie d'Italia (formerly Ilva) in Taranto. It has also been considered the failure to comply with the indications that, for some time, the Guarantor has provided to all public entities with the aforementioned Guidelines and in numerous measures on individual concrete cases adopted over the years by the Guarantor.

On the other hand, it has been taken into account that the publication occurred for a short period of time and that the Ministry took care to verify that the number of downloads of the aforementioned document is equal to four, of which three downloads correspond to the IP address of the Ministry while only one corresponds to an external IP address. It has also been considered that, upon learning from press reports about what occurred, the Ministry, even before the initiation of the investigation by the Guarantor, took all necessary actions to remove the personal data in question from its institutional website, thus adopting appropriate measures to remedy the unlawful act even before the intervention of the Guarantor. The initiatives undertaken by the Ministry, including the involvement of the Data Protection Officer, aimed at implementing "every most appropriate action to prevent similar incidents from recurring in the future," have also been evaluated. Finally, there are no previous relevant violations committed by the data controller or previous measures pursuant to Article 58 of the Regulation.

In light of the aforementioned elements, assessed in their entirety, it is deemed appropriate to determine the amount of the pecuniary sanction at €5,000 (five thousand) for the violation of Articles 5 paragraph 1, letter a) and c), 6 paragraph 1 letter c) and e), and 9 of the Regulation and Articles 2-ter, 2-sexies, and 2-septies, paragraph 8, of the Code, as an administrative pecuniary sanction deemed,

pursuant to Article 83, paragraph 1, of the Regulation, effective, proportionate, and deterrent.

Considering that the personal data subject to online dissemination concerned the personal data of numerous workers, including, for some of them, data related to health, it is also deemed that the accessory sanction of publication on the Guarantor's website of this measure, provided for by Article 166, paragraph 7 of the Code and Article 16 of the Guarantor's Regulation No. 1/2019, should be applied.

Finally, it is noted that the conditions referred to in Article 17 of Regulation No. 1/2019 are met.

ALL OF THE ABOVE CONSIDERED, THE GUARANTOR declares, pursuant to Article 57, paragraph 1, letter f), of the Regulation, the unlawfulness of the processing carried out by the Ministry of the Environment and Energy Security, formerly the Ministry of Ecological Transition, for violation of Articles 5 paragraph 1, letter a) and c), 6 paragraph 1 letter c) and e), and 9 of the Regulation and Articles 2-ter, 2-sexies, and 2-septies, paragraph 8, of the Code, as stated in the reasoning;

ORDERS

The Ministry of the Environment and Energy Security, formerly the Ministry of Ecological Transition, represented by its legal representative pro tempore, with registered office at Via C. Colombo, 44 – 00147, Rome, Tax Code 97047140583, to pay the sum of €5,000 (five thousand) as an administrative pecuniary sanction for the violations indicated in the reasoning. It is noted that the offender, pursuant to Article 166, paragraph 8, of the Code, has the option to settle the dispute by payment, within 30 days, of an amount equal to half of the imposed sanction;

COMMANDS

the aforementioned Ministry, in case of failure to settle the dispute pursuant to Article 166, paragraph 8, of the Code, to pay the sum of €5,000 (five thousand) according to the methods indicated in the annex, within 30 days from the notification of this measure, under penalty of the adoption of the consequent executive acts pursuant to Article 27 of Law No. 689/1981;

DISPOSES

pursuant to Article 166, paragraph 7, of the Code, the publication of this measure on the Guarantor's website, considering that the conditions referred to in Article 17 of the Guarantor's Regulation No. 1/2019 are met.

Pursuant to Articles 78 of the Regulation, 152 of the Code, and 10 of Legislative Decree No. 150/2011, against this measure, it is possible to appeal to the ordinary judicial authority, under penalty of inadmissibility, within thirty days from the date of communication of the measure itself or within sixty days if the appellant resides abroad.

Rome, September 28, 2023

THE PRESIDENT

Stanzione

THE REPORTER

Ghiglia

THE SECRETARY GENERAL

Mattei